



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Raisanen v Hawdon, 2025 ONLTB 96496

Date: 2025-12-18

File Number: LTB-L-089448-24

In the matter of: 765 MCALLEN ST
SAULT STE. MARIE ON P6C1C9

Between: Susan Raisanen Landlords
Murray Raisanen

And

The Estate of Shannon Hawdon Former Tenant

Kevin Bjornaa Tenant

Susan Raisanen and Murray Raisanen (the 'Landlords') applied for an order to terminate the tenancy and evict Shannon Hawdon (the 'Former Tenant') and Kevin Bjornaa ('KB' or the 'Tenant') because:

- the Tenant and Former Tenant did not pay the rent that they owe (L1 Application); and
- the Landlords have entered into an agreement of purchase and sale of the rental unit and the purchaser in good faith requires possession of the rental unit for the purpose of residential occupation (L2 Application).

This application was heard by videoconference on April 7, 2025.

Only the Landlords, and the Landlords' Legal Representative, Nathan Chevalier, attended the hearing, and Khanh Diem Ho ('KDH') testified as the Landlords' witness.

As of 9:34 a.m., the Former Tenant was not present or represented at the hearing although properly served with notice of this hearing by the Board. The Tenant was also given notice of the

hearing by the Landlords but was not present or represented at the hearing. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlords' evidence.

Determinations:

Preliminary Issues:

Status of the Tenancy & Parties to the Application:

1. At the hearing, the Landlords' Legal Representative stated in late 2024 the Landlords became aware that the Former Tenant has passed away. The Landlords did not know the exact date of the death. The Former Tenant was the only tenant on the lease agreement.
2. The person currently occupying the unit is the Former Tenant's partner, Kevin Bjornaa (KB).
3. The Landlords have never filed an A2 application under section 100 of the *Residential Tenancies Act, 2006* (the 'Act') seeking to evict KB as an unauthorized occupant.
4. Even if the Landlords had not discovered the Former Tenant's passing until December 31, 2024, the Landlords would have had until February 28, 2025 to file an A2 application to be within the 60-day time period for filing such an application per subsection 100(2) of the *Residential Tenancies Act, 2006* (the 'Act').
5. Subsection 104(4)(b) of the Act provides that a person's occupation of a rental unit shall be deemed to be an assignment of the rental unit with the consent of the landlord as of the date the unauthorized occupancy began if the landlord does not apply to the Board under section 100 for an order evicting the person within 60 days of the landlord discovering the unauthorized occupancy
6. As no such application was filed by February 28, 2025, I find that there was a deemed assignment of the tenancy to KB per subsubsection 104(4) of the Act.
7. Due to the above findings, the application was amended to include KB as the Tenant and name the Estate of Shannon Hawdon as the 'Former Tenant.'
8. The Landlords' Legal Representative stated that KB was aware of the proceedings as he reached out to a legal clinic who then contacted the Landlords' Legal Representative regarding the matter but did not follow up afterwards. I am therefore satisfied that KB was aware of this proceeding and had the information necessary to participate in the hearing.

Therefore, it is appropriate in the circumstances to amend the application to add KB as the Tenant. The style of cause has thus been amended accordingly to reflect these findings.

L1 Application – Non-Payment of Rent

1. The Landlords served the Former Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Former Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. The lawful rent is \$871.00. It is due on the 1st day of each month.
3. Based on the Monthly rent, the daily rent/compensation is \$28.64. This amount is calculated as follows: \$871.00 x 12, divided by 365 days.
4. Neither the Tenant nor the Former Tenant have made any payments since the application was filed.
5. The total rent arrears owing to the Landlord are \$9,431.00 for the period from June 1, 2024 to April 30, 2025.
6. I must next determine what portion of those arrears are owing by the Estate of the Former Tenant and what is owing by the current Tenant.
7. Subsection 95(6) of the Act provides that where a rental unit has been assigned to another person, the former tenant is liable to the landlord for any breach of the tenant's obligations that occurs before the assignment while the assignee is liable to the landlord for any breach of the tenant's obligations that occurs after the assignment.
8. As no exact date regarding when the Landlords were made aware of the Former Tenant's death was provided other than "late 2024," I find it appropriate in the circumstances to assign the date of December 22, 2024. The Landlords' Legal Representative confirmed that the Tenant was provided a cheque for one month's rent as compensation for the N12 notice of termination on December 22, 2024. Thus, I find it reasonable to infer that the Landlords were aware of the Former Tenant's death at that time.
9. Subsection 91(1) of the Act states that "if a tenant of a rental unit dies and there are no other tenants of the rental unit, the tenancy shall be deemed to be terminated 30 days after the death of the tenant." For the purposes of the L1 application, the tenancy regarding the Former Tenant thus terminated on January 21, 2025, and the Former Tenant is liable for the arrears owing up to that date. Therefore, the Former Tenant owes \$6,548.44 for arrears of rent to January 21, 2025.
10. Given the findings above and the tenancy being deemed assigned effective 31 days after the death of the Former Tenant, the current Tenant is responsible for arrears of rent from

January 22, 2025 onwards. The rent arrears owing by the Tenant to April 30, 2025 are therefore \$2,870.76.

11. The Landlords incurred costs of \$186.00 for filing the application and are entitled to reimbursement of those costs.
12. There is no last month's rent deposit.

L2 Application – Purchaser Requires the Rental Unit

13. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy in the application. Therefore, the tenancy is terminated.
14. The rental unit is a detached two-story, three-bedroom house with two bathrooms and a finished basement.
15. On October 4, 2024, the Landlord gave the Former Tenant an N12 notice of termination deemed served that same day with the termination date of December 31, 2024. The notice was given on behalf of the Purchaser who claims that they require vacant possession of the rental unit for the purpose of their own residential occupation.
16. An amendment to the Agreement of Purchase and Sale ('APS') was submitted at the hearing. The original APS was signed on December 7, 2023, and the closing date has been extended at least three times. The Purchaser, KDH, confirmed that one of the conditions to the agreement is that they be provided with vacant possession of the unit. KDH testified that the Landlords' daughter is a friend of his, and he is in not in a rush to take possession.
17. KDH is currently renting an apartment and intends to make the unit his permanent residence.
18. The Former Tenant was in possession of the rental unit on the date the application was filed. The tenancy is deemed assigned after the N12 notice was provided to the Former Tenant, and the assignee Tenant is aware of the notice and the proceedings.
19. The Landlord has compensated the Tenant an amount equal to one month's rent by December 31, 2024. A cheque for \$900.00 was addressed to the Tenant and given on December 22, 2024.
20. Per section 49 of the Act, in order for a landlord to be successful in an application to terminate a tenancy for the purchaser's own use, the landlord must satisfy the Board that:
 1. the residential complex contains three or fewer units.
 2. the landlord has entered into an agreement of purchase and sale of the residential complex.

3. the purchaser in good faith requires possession of the rental unit for the purpose of (in this instance) their own residential occupation.

21. In this case, the residential complex is a single unit detached home. The Landlords produced evidence of an APS for the residential complex, and the Purchaser testified as to his intentions to make the unit his permanent residence. Given the uncontested evidence and submissions before me, I am satisfied that the N12 Notice was given in good faith and that KDH has a genuine intention to reside in the rental unit for the purpose of residential occupation. Accordingly, I find that the requirements set out in subsection 49(1) of the Act have been met.

Relief from Eviction

22. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would be unfair to grant relief from eviction pursuant to subsection 83(1) of the Act. The Tenant was aware of the proceedings but was not present to make any submissions as to why the tenancy should be preserved or the eviction postponed.

It is ordered that:

1. Pursuant to the L2 Application, the tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before December 29, 2025.
2. The Former Tenant shall pay to the Landlord \$6,548.44 for rent arrears owing up to January 21, 2025.
3. If the Former Tenant does not pay the Landlord the full amount owing on or before December 29, 2025, the Former Tenant will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.
4. The Tenant shall pay the Landlord \$3,056.76 for rent arrears owing from January 22, 2025 up to the date of the hearing and the cost of filing the application.
5. The Tenant shall also pay the Landlord compensation of \$28.64 per day for the use of the unit starting April 8, 2025 to the date the Tenant moves out of the unit.
6. If the Tenant does not pay the Landlord the full amount owing on or before December 29, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.
7. If the unit is not vacated on or before December 29, 2025, then starting December 30, 2025, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.

8. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after December 30, 2025.

December 18, 2025
Date Issued

Fotoula Hatzantonis
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on June 30, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.